

PROPOSED ORDER OF SUPERINTENDING CONTROL

STATE OF MICHIGAN
IN THE SUPREME COURT

MSC Case No. ____ (To Be Assigned)

Lower Court Case Nos.:

14th Judicial Circuit Court: 2024-001507-DC; 2023-5907-PP

Court of Appeals: 366810 (Pending)

ANDREW J. PIGORS,
Petitioner (Pro Se),

v.

THE 14TH JUDICIAL CIRCUIT COURT,
FAMILY DIVISION, MUSKEGON COUNTY
(HON. JENNY L. McNEILL, Presiding),
Respondent,

and

EMILY A. WATSON,
Real Party in Interest.

ORDER OF SUPERINTENDING CONTROL

At a session of the Michigan Supreme Court, held at Lansing on the \\\\ day of \\\, 20\\.

PRESENT: Hon. \\\, Chief Justice, and Justices \\\.

The Petition for Order of Superintending Control having been filed by Petitioner Andrew J.

Pigors, pro se, together with the Brief in Support, Affidavit of Andrew J. Pigors, and Appendix, and the Court having reviewed the lower court record, the parties' submissions, and being otherwise fully advised in the premises;

The Court finds that:

1. This Court has jurisdiction pursuant to Const 1963, art 6, Sec. 4, which vests in this Court "general superintending control over all courts," and MCR 7.304.
2. Petitioner has no adequate legal remedy. The pending Court of Appeals appeal (No. 366810) and other remedies pursued by Petitioner are insufficient, individually or collectively, to address the systemic nature of the lower court's dysfunction.
3. The lower court's exercise of power was unauthorized by law in the following respects:
 - Failure to enforce the mandatory duty imposed by MCL 552.644 despite documented parenting time violations;
 - Conduct of proceedings ex parte, without notice to Petitioner;
 - Use of civil contempt in a manner that was punitive rather than coercive, resulting in 59 days of incarceration without adequate procedural protections;
 - Imposition of a \$250 bond on a disqualification motion filed by an indigent litigant, creating an unconstitutional financial barrier to the exercise of a fundamental right.
4. L.D.W., a minor child, has been separated from Petitioner, a fit parent, for approximately 229 consecutive days since July 29, 2025 -- following the trial court's ex parte revocation of a 50/50 custody arrangement that had functioned successfully for 438 days -- causing ongoing developmental and psychological harm. In total, L.D.W. has been denied contact with his father for 269 days across two separate withholding periods.

IT IS HEREBY ORDERED:

A. DISQUALIFICATION OF HON. JENNY L. McNEILL

Hon. Jenny L. McNeill is hereby disqualified from all further proceedings in Case Nos. 2024-001507-DC and 2023-5907-PP, and from all matters involving Petitioner Andrew J.

Pigors and the minor child L.D.W.

B. REASSIGNMENT TO DIFFERENT JUDGE

The State Court Administrative Office (SCAO) shall, within seven (7) days of this Order, assign a different judge to preside over Case Nos. 2024-001507-DC and 2023-5907-PP. The newly assigned judge shall not be from the 14th Judicial Circuit if a conflict-free assignment within the circuit is unavailable.

Upon reassignment, the newly assigned judge shall conduct a comprehensive review of the case file within fourteen (14) days and schedule an initial status conference with all parties.

C. EMERGENCY PARENTING TIME WITHIN 14 DAYS

Within fourteen (14) days of this Order, the newly assigned judge, or this Court if reassignment has not yet occurred, shall enter an order establishing a parenting time schedule between Petitioner and L.D.W.

The initial parenting time schedule shall be designed to begin restoring the parent-child relationship in a manner that serves L.D.W.'s best interests, considering the 229 consecutive days of involuntary separation following the revocation of a functioning 50/50 custody arrangement.

Pending the establishment of a new parenting time schedule, neither party shall take any action to further restrict or prevent contact between Petitioner and L.D.W.

D. VACATUR OF EX PARTE ORDERS ENTERED WITHOUT NOTICE

The following categories of orders entered by the 14th Circuit Court in Case Nos. 2024-001507-DC and 2023-5907-PP are hereby VACATED:

1. All orders entered ex parte without notice to Petitioner, to the extent they affect Petitioner's parenting time, custody rights, or financial obligations;
2. The \$250 bond requirement imposed on Petitioner's motion for disqualification under MCR 2.003;

3. All civil contempt orders to the extent they imposed purge conditions beyond Petitioner's demonstrated ability to pay, without an adequate ability-to-pay determination as required by *Turner v. Rogers*, 564 U.S. 431 (2011).

The newly assigned judge shall, within thirty (30) days of reassignment, review all remaining orders in the case and determine whether any additional orders require modification or vacatur.

E. INDEPENDENT CUSTODY EVALUATION

The newly assigned judge shall, within thirty (30) days of reassignment, order an independent custody evaluation by a qualified evaluator. The evaluator shall be:

1. Licensed in the State of Michigan;
2. Selected by the newly assigned judge (not by either party);
3. Independent of any prior involvement with the case.

The custody evaluation shall specifically address:

1. L.D.W.'s current condition and best interests under MCL 722.23;
2. The effect of the 229-day current separation -- and 269 total days of withholding -- on L.D.W., considering the prior 438-day period of successful shared custody;
3. An appropriate parenting time schedule designed to serve L.D.W.'s best interests;
4. Any safety concerns, if any, related to either parent.

If Petitioner's Motion to Waive Fees and Costs is granted, the cost of the evaluation shall be borne by the county or allocated as the newly assigned judge deems appropriate.

F. CASE MANAGEMENT SCHEDULE WITHIN 30 DAYS

Within thirty (30) days of reassignment, the newly assigned judge shall establish a comprehensive case management schedule that includes:

1. Completion of all outstanding discovery;
2. Deadline for filing dispositive motions;
3. A firm trial date, to be set no later than one hundred eighty (180) days from reassignment;

4. Regular status conferences at intervals of no more than forty-five (45) days.

All future proceedings shall be conducted in compliance with due process, including adequate notice to all parties and the opportunity to be heard.

G. MONTHLY COMPLIANCE REPORTS FOR 12 MONTHS

The 14th Judicial Circuit Court, through its Chief Judge, shall file monthly compliance reports with this Court for a period of twelve (12) months following the date of this Order. Each report shall include:

1. Confirmation that a new judge has been assigned and is actively managing the case;
2. The status of parenting time between Petitioner and L.D.W.;
3. A summary of all proceedings held during the reporting period;
4. Confirmation that all proceedings were conducted with proper notice to all parties;
5. Any outstanding issues requiring this Court's attention.

Either party may file a motion with this Court at any time during the monitoring period to address non-compliance with this Order.

H. CONSOLIDATION OF ALL PENDING MATTERS

The pending Court of Appeals case, No. 366810, is hereby stayed pending this Court's disposition of the consolidated proceedings.

Case Nos. 2024-001507-DC and 2023-5907-PP shall be consolidated for all purposes before the newly assigned judge.

This Order shall be served on the Michigan Court of Appeals, Clerk of the Court.

GENERAL PROVISIONS

This Order is effective immediately upon entry.

The Clerk of this Court shall serve copies of this Order on:

1. Petitioner Andrew J. Pigors, 1977 Whitehall Road, Lot 17, North Muskegon, MI 49445;

2. Emily A. Watson, 2160 Garland Drive, Norton Shores, MI 49441;
3. Hon. Jenny L. McNeill, 990 Terrace St, Muskegon, MI 49442;
4. The Chief Judge, 14th Judicial Circuit Court, 990 Terrace St, Muskegon, MI 49442;
5. The State Court Administrative Office;
6. The Michigan Court of Appeals, Clerk of the Court;
7. Friend of the Court -- Muskegon County (Pamela Rusco), 990 Terrace St, Muskegon, MI 49442.

This Court retains jurisdiction over this matter for all purposes, including enforcement of this Order, modification of its terms, and resolution of any disputes arising from its implementation.

SO ORDERED.

Date: _

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Justice, Michigan Supreme Court

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Clerk, Michigan Supreme Court

This proposed order is submitted by Petitioner Andrew J. Pigors, pro se, for the Court's consideration pursuant to MCR 7.304. The Court may modify, amend, or revise this proposed order in any manner it deems appropriate.